

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicholas Venduras	Team: Squad #16	CCRB Case #: 202300828	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 01/13/2023 9:56 PM	Location of Incident: Northwest corner of 91st Avenue and 85th Street	18 Mo. SOL 7/13/2024	Precinct: 102		
Date/Time CV Reported Mon, 01/16/2023 9:42 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/31/2023 5:06 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Connor Okeefe	03263	973636	102 PCT
2. PO Jared Nilsson	14382	967629	102 PCT
3. SGT Robert Sabella	01413	951193	102 PCT
4. PO Giancarlo Pineda	23274	962694	102 PCT
5. PO William Kiladitis	06389	970638	102 PCT
6. An officer			
7. SGT Thomas Rynne	02536	956224	102 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Joseph Sotira	30987	951287	102 PCT
2. SGT Connor Lichte	02957	951919	102 PCT
3. PO Winston Babolal	27108	940904	102 PCT
4. PO Michael Martinez	11422	953061	106 PCT
5. PO John Fox	07480	934877	106 PCT
6. PO Michael Abagnale	00335	972491	106 PCT
7. PO Jonathon Batt	22031	973243	106 PCT
8. PO Rochelle Stapleton	21732	973791	106 PCT
9. PO Whenderson Paul	06043	962664	102 PCT
10. PO Hector Lugo	01919	962561	102 PCT
11. PO Christopher Bergin	24177	952460	102 PCT
12. PO John Raphael	24651	962715	106 PCT
13. PO Christine Glaser	04156	954870	106 PCT
14. PO Fausto Rojas	22355	962747	102 PCT
15. PO Matthew Bacile	03157	960104	102 PCT
16. PO Louis Belovin	07515	968271	102 PCT
17. PO Christian Leicht	23370	972453	106 PCT
18. PO Peter Couvaris	00682	972590	106 PCT
19. PO Damie Danseglio	00794	967472	102 PCT
20. PO Bartolomeo Dangelo	27656	950270	102 PCT
21. PO Tamara Louis	18343	969917	102 PCT
22. PO Brian Riggs	25603	970137	102 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
23. PO Jacob Vasconez	23470	971256	102 PCT
24. PO Jeff Biondo	04230	962258	102 PCT
25. PO Joseph Desimone	15309	956586	106 PCT
26. PO Maximilian Stocklmeier	16832	961332	106 PCT
27. PO Elizabeth Simonetti	21294	959750	102 PCT
28. PO Jillian Bonilla	13742	940097	106 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Robert Sabella	Abuse: Sergeant Robert Sabella searched the vehicle in which § 87(2)(b) was an occupant.	A . Within NYPD Guidelines
B . PO Giancarlo Pineda	Abuse: Police Officer Giancarlo Pineda searched the vehicle in which § 87(2)(b) was an occupant.	B . Within NYPD Guidelines
C . PO William Kiladitis	Abuse: Police Officer William Kiladitis searched the vehicle in which § 87(2)(b) was an occupant.	C . Within NYPD Guidelines
D . PO William Kiladitis	Force: Police Officer William Kiladitis used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO William Kiladitis	Discourtesy: Police Officer William Kiladitis spoke discourteously to § 87(2)(b)	E . Within NYPD Guidelines
F . PO William Kiladitis	Force: Police Officer William Kiladitis restricted § 87(2)(b) breathing.	F . Unable to Determine
G . PO William Kiladitis	Force: Police Officer William Kiladitis used a non-lethal restraining device on § 87(2)(b)	G . Within NYPD Guidelines
H . An officer	Force: An officer used physical force against § 87(2)(b)	H . Officer(s) Unidentified
I . PO William Kiladitis	Force: Police Officer William Kiladitis used physical force against § 87(2)(b)	I . Within NYPD Guidelines
J . SGT Robert Sabella	Force: Sergeant Robert Sabella used physical force against § 87(2)(b)	J . Unable to Determine
K . PO Giancarlo Pineda	Force: Police Officer Giancarlo Pineda used physical force against § 87(2)(b)	K . Unable to Determine
L . PO Giancarlo Pineda	Discourtesy: Police Officer Giancarlo Pineda spoke discourteously to § 87(2)(b)	L . Within NYPD Guidelines
M . PO William Kiladitis	Abuse: Police Officer William Kiladitis threatened § 87(2)(b) with the use of force.	M . Within NYPD Guidelines
N . PO Giancarlo Pineda	Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on § 87(2)(b)	N . Within NYPD Guidelines
O . PO Giancarlo Pineda	Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on § 87(2)(b)	O . Substantiated
P . PO Giancarlo Pineda	Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on § 87(2)(b)	P . Substantiated
Q . PO Giancarlo Pineda	Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on § 87(2)(b)	Q . Substantiated
R . PO Giancarlo Pineda	Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on § 87(2)(b)	R . Substantiated
S . PO Giancarlo Pineda	Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on § 87(2)(b)	S . Substantiated
T . PO Giancarlo Pineda	Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on § 87(2)(b)	T . Substantiated
U . PO Giancarlo Pineda	Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on § 87(2)(b)	U . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
V . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	V . Officer(s) Unidentified
W . An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	W . Within NYPD Guidelines
X . PO William Kiladitis	Force: Police Officer William Kiladitis used pepper spray against § 87(2)(b)	X . Within NYPD Guidelines
Y . PO Connor Okeefe	Force: Police Officer Connor Okeefe used physical force against § 87(2)(b)	Y . Unfounded
Z . PO Jared Nilsson	Force: Police Officer Jared Nilsson used physical force against § 87(2)(b)	Z . Unfounded
AA. PO Giancarlo Pineda	Abuse: Police Officer Giancarlo Pineda searched § 87(2)(b) recording device.	AA. Unable to Determine
AB. SGT Thomas Rynne	Discourtesy: Sergeant Thomas Rynne was discourteous to § 87(2)(b)	AB. Substantiated

Case Summary

On January 16, 2023, § 87(2)(b) filed this complaint with IAB via telephone on behalf of her husband, § 87(2)(b). The CCRB received this case on January 31, 2023 (generating IAB log § 87(2)(b)).

On January 13, 2023, at approximately 9:56 PM, Sergeant Robert Sabella, Police Officer William Kiladitis, and Police Officer Giancarlo Pineda of the 102nd Precinct stopped § 87(2)(b) while he was driving § 87(2)(b) vehicle at the intersection of 91st Avenue and 85th Street in Queens for failing to obey a stop sign. During this vehicle stop, Sgt. Sabella and PO Pineda shined their flashlights into the vehicle (**Allegations A & B: Abuse of Authority, Within NYPD Guidelines**). PO Kiladitis then searched the backseat of § 87(2)(b) vehicle and found an illegal firearm inside a fanny pack (**Allegation C: Abuse of Authority, Within NYPD Guidelines**).

As PO Kiladitis approached § 87(2)(b) to place him in handcuffs, he forcefully took § 87(2)(b) to the ground (**Allegation D: Force, Within NYPD Guidelines**). PO Kiladitis used the word “fucking” three times and the word “fuck” once while speaking to § 87(2)(b) (**Allegation E: Discourtesy, Within NYPD Guidelines**). PO Kiladitis allegedly restricted § 87(2)(b) breathing (**Allegation F: Force, Unable to Determine**). PO Kiladitis tased § 87(2)(b) (**Allegation G: Force, Within NYPD Guidelines**). An unknown officer allegedly pulled and twisted § 87(2)(b) leg, causing injury (**Allegation H: Force, Officer Unidentified**). PO Kiladitis punched § 87(2)(b) head (**Allegation I: Force, Within NYPD Guidelines**). Sgt. Sabella and PO Pineda also allegedly punched § 87(2)(b) (**Allegations J & K: Force, Unable to Determine**). PO Pineda used the word “fuck” and “shit” while speaking to § 87(2)(b) (**Allegation L: Discourtesy, Within NYPD Guidelines**). As the struggle continued, PO Kiladitis threatened to punch § 87(2)(b) again (**Allegation M: Abuse of Authority, Within NYPD Guidelines**). PO Pineda then deployed his taser for eight cycles on § 87(2)(b) (**Allegation N: Force, Within NYPD Guidelines & Allegations O to U: Force, Substantiated**). An officer said he would “fucking” pepper-spray § 87(2)(b) whom he called a “motherfucker” (**Allegation V: Discourtesy, Officer Unidentified & Allegation W: Abuse of Authority, Within NYPD Guidelines**). PO Kiladitis pepper sprayed § 87(2)(b) and the officers subsequently handcuffed him (**Allegation X: Force, Within NYPD Guidelines**). Newly arrived officers, Police Officer Connor Okeefe and Police Officer Jared Nilsson of the 102nd Precinct allegedly pulled § 87(2)(b) to his feet so hard that they injured his arm (**Allegations Y & Z: Force, Unfounded**).

After the struggle, PO Pineda allegedly searched through § 87(2)(b) phone without permission (**Allegation AA: Abuse of Authority, Unable to Determine**).

Additional units arrived as backup and Sergeant Thomas Rynne of the 102nd Precinct Detective Squad wore an unauthorized “Devil’s Island” patch on his uniform (**Allegation AB: Discourtesy, Substantiated**).

§ 87(2)(b) was arrested and charged with second degree criminal possession of a loaded firearm, third degree criminal possession of a weapon with a previous conviction, criminal possession of a controlled substance with intent to sell, resisting arrest, obstruction of governmental administration, fourth degree possession of a weapon, operating an unregistered vehicle, and two counts of failing to stop at a stop sign (**BR 01**).

This case was originally assigned to Supervising Investigator Rachel Adler and was reassigned to Investigator Nick Venduras on August 9, 2023.

The NYPD Legal Department provided 36 Body-Worn Camera (BWC) videos in regard to this case (BR 02 – BR 37). § 87(2)(b) provided a cellphone video in regard to this case (BR 38). The investigation is not in possession of additional video.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Robert Sabella searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer Giancarlo Pineda searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (C) Abuse of Authority: Police Officer William Kiladitis searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated he was driving alone in § 87(2)(b) vehicle, which had Massachusetts license plates (BR 39). § 87(2)(b) purchased this vehicle about two and a half weeks earlier and had 30 days to return it, so the license plates were still from the dealer and the vehicle was uninsured. At 91st Avenue and 85th Street, Sgt. Sabella, PO Pineda, and PO Kiladitis, in an unmarked NYPD vehicle, pulled him over, but § 87(2)(b) testified he obeyed all traffic laws. Sgt. Sabella then approached the driver's window, PO Pineda went to the front passenger's window, and PO Kiladitis went to the back driver's side window. Sgt. Sabella told § 87(2)(b) he failed to stop at two stop signs and asked for his ID and vehicle registration, which § 87(2)(b) provided, along with his explanation for the dealer plates. Sgt. Sabella asked to see the vehicle's title, but it was at § 87(2)(b) house, so he asked § 87(2)(b) to find it via Facetime call. Sgt. Sabella said the license plates did not match the vehicle and told § 87(2)(b) to exit, which § 87(2)(b) did.

Once § 87(2)(b) was outside, Sgt. Sabella asked to search the car (BR 39). § 87(2)(b) said there was no reason to search his car and asked why the officers wanted to do so. Sgt. Sabella said something about getting dogs to search the car. PO Kiladitis opened the back driver's side door and then asked if they could search his car, and again § 87(2)(b) said not to, but PO Kiladitis entered and searched the vehicle anyway. In the backseat area, PO Kiladitis found a loaded firearm in a small bag belonging to § 87(2)(b) friend, who had been in the car earlier.

All three officers activated their BWCs during this incident and their initial interaction is generally consistent with § 87(2)(b) statement. Sgt. Sabella's BWC shows the officers' approach, and Sgt. Sabella asks § 87(2)(b) to turn his car off at 1:09 from next to the driver's side window and asks him to remove the keys from the ignition, which § 87(2)(b) does (BR 04). Sgt. Sabella shines his flashlight onto the floor area behind § 87(2)(b) seat at 1:20 for about three seconds and at 3:12 for about 10 seconds. In PO Pineda's BWC, PO Pineda generally remains near the rear passenger side and almost continually shines his flashlight into the same area between 1:24 and 3:04 (BR 03). BWC by PO Kiladitis shows he also shines his flashlight through the rear passenger-side window for roughly seven seconds beginning at 3:02 (BR 02).

At 3:16 at the rear of the vehicle, PO Pineda's BWC shows him asking PO Kiladitis to inquire about what § 87(2)(b) took off (BR 03). PO Pineda mentions the fanny pack and PO Kiladitis says something about it being in the back.

At 03:36 in PO Kiladitis' BWC, after § 87(2)(b) exits the vehicle at PO Kiladitis' request, § 87(2)(b) offers to open the trunk for the officers (BR 02). When PO Kiladitis asks, "You mind if we search the car?" § 87(2)(b) states, "There's nothing in the car." PO Kiladitis asks again, and § 87(2)(b) says, "No, but it's legit that I don't want you to search the car 'cause there's nothing in there. You could search it, man. There's nothing in there." PO Kiladitis states, "You sure? It's up to you." § 87(2)(b)

gestures his right hand toward the vehicle and states, “There’s nothing in the car.” At 3:57, PO Kiladitis opens the rear driver’s side door and leans in at 4:02 to move the fanny pack to the back seat and open it. At timestamp 4:07, PO Kiladitis stops searching and turns back to § 87(2)(b) to take him into custody. It is unclear what PO Kiladitis sees inside the fanny pack.

At no point in any BWC does Sgt. Sabella mention bringing dogs to the scene.

PO Kiladitis said he and his partners saw § 87(2)(b) in a vehicle with one Massachusetts plate, disobey two stop signs while on patrol (**BR 40**). PO Kiladitis could not remember exactly what came back when he ran the plate, but it did not match the vehicle, meaning the vehicle was unregistered and not allowed on the road. PO Kiladitis and the officers decided to conduct a vehicle stop to address these violations.

PO Kiladitis had a clear view into § 87(2)(b) vehicle and as PO Kiladitis exited his police vehicle, he saw § 87(2)(b) make a “jackknife” motion with his arm, meaning he pulled his arm up creating a 90 degree angle, and in doing so, § 87(2)(b) threw a fanny pack into the back seat area (**BR 40**). In doing so, he appeared to be trying to hide his bag from the officers, which PO Kiladitis knew from his training could indicate the presence of a weapon. Normally, the presence of a fanny pack during a car stop would not raise suspicion, but this apparent hiding action is unusual and raised PO Kiladitis’ suspicions about a potential weapon. PO Pineda confirmed with PO Kiladitis that he saw this motion.

During their initial conversation, § 87(2)(b) told the officers he recently bought the vehicle and said there was some issue with the registration, but PO Kiladitis knew vehicles must be sold registered and there is no reasonable explanation why the license plate would not match the vehicle (**BR 40**). Due to their suspicions about the mismatched plate and § 87(2)(b) hiding the bag, the officers asked § 87(2)(b) to exit the vehicle. PO Kiladitis did not know if there were any dangerous objects in the vehicle, so he wanted § 87(2)(b) out for safety reasons. PO Kiladitis asked § 87(2)(b) for consent to search the vehicle due to his heightened suspicions and § 87(2)(b) gave this consent, even after PO Kiladitis said it was up to him.

PO Kiladitis went directly to the bag in the back seat and was “very, very certain” that it was a firearm when he felt the weight and the rectangular shape of the object inside (**BR 40**). He believed he felt the gun’s grip based on his experience with firearms. When PO Kiladitis looked inside the bag, he saw a firearm that appeared loaded. In addition to the firearm, PO Kiladitis found a “large quantity” of crack and either ecstasy or methamphetamine. At that point, PO Kiladitis went to place § 87(2)(b) under arrest.

PO Pineda’s statement was generally consistent with PO Kiladitis’ testimony, but he said he first noticed § 87(2)(b) when he saw him driving without a front license plate (**BR 41**). While subsequently following § 87(2)(b) PO Pineda saw the vehicle had a rear Massachusetts plate, a state PO Pineda knew requires both front and rear license plates. PO Pineda also saw § 87(2)(b) remove his fanny pack and place it underneath the driver’s seat as § 87(2)(b) was pulling over. When he saw this action, PO Pineda warned PO Kiladitis there could be a firearm inside. § 87(2)(b) complied with the officers’ instructions to exit his vehicle, but he appeared nervous due to how much he spoke and his “antsy,” “fidgety,” movements.

Sgt. Sabella’s testimony regarding the stop and subsequent search was consistent with the other officers’ statements (**BR 42**).

People v. Robinson, 115 A.D.2d 411, states when both the initial stop of the defendant's vehicle and his detention are valid, shining a flashlight into the interior of a vehicle to illuminate what would have been in plain view in daylight does not involve an unreasonable intrusion (BR 43).

People v. Battaglia, 86 N.Y.2d 755, states when police possess a founded suspicion of criminality, they are justified to a common-law inquiry in the form of a request for the defendant to consent to a vehicle search (BR 44).

Patrol Guide Procedure 212-11 states "founded suspicion" arises when there is some present indication of criminality based on observable conduct or reliable hearsay information (BR 45).

§ 87(2)(g)

§ 87(2)(g)

BWC shows each officer focused on the back seat area during the vehicle stop and PO Pineda talks to PO Kiladitis about the fanny pack in the back seat. § 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

As BWC shows § 87(2)(g) PO Kiladitis confined his search strictly to the fanny pack. It is therefore recommended that **Allegation C** be closed as **Within NYPD Guidelines**.

Allegation (D) Force: Police Officer William Kiladitis used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer William Kiladitis restricted § 87(2)(b) breathing.

Allegation (G) Force: Police Officer William Kiladitis used a non-lethal restraining device on

§ 87(2)(b)

Allegation (H) Force: An officer used physical force against § 87(2)(b)

Allegation (I) Force: Police Officer William Kiladitis used physical force against § 87(2)(b)

Allegation (J) Force: Sergeant Robert Sabella used physical force against § 87(2)(b)

Allegation (K) Force: Police Officer Giancarlo Pineda used physical force against § 87(2)(b)

Allegation (M) Abuse of Authority: Police Officer William Kiladitis threatened § 87(2)(b) with the use of force.

Allegation (N) Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on

§ 87(2)(b)

Allegation (O) Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on

§ 87(2)(b)

Allegation (P) Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on

§ 87(2)(b)

Allegation (Q) Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on

§ 87(2)(b)

Allegation (R) Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on

§ 87(2)(b)

Allegation (S) Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on

§ 87(2)(b)

Allegation (T) Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on

§ 87(2)(b)

Allegation (U) Force: Police Officer Giancarlo Pineda used a non-lethal restraining device on

§ 87(2)(b)

Allegation (W) Abuse of Authority: An officer threatened § 87(2)(b) with the use of force.

Allegation (X) Force: Police Officer William Kiladitis used pepper spray against § 87(2)(b).

§ 87(2)(b)

Allegation (Y) Force: Police Officer Connor Okeefe used physical force against § 87(2)(b)

Allegation (Z) Force: Police Officer Jared Nilsson used physical force against § 87(2)(b)

§ 87(2)(b) said once PO Kiladitis found the firearm, he grabbed § 87(2)(b) arm and told him to turn around to be handcuffed (BR 39). § 87(2)(b) complied and told PO Kiladitis to be gentle with him due to recent surgeries on both shoulders, which still hurt. PO Kiladitis pushed § 87(2)(b) from behind against a nearby chest-height metal fence, causing § 87(2)(b) to bend over and putting his face in the bushes. § 87(2)(b) did not do anything with his body to resist. PO Kiladitis then slammed § 87(2)(b) to the ground, but he did not recall PO Kiladitis' exact movements. An officer he could not see bent § 87(2)(b) right knee upward, twisted it and his right ankle, and held it in that position, which fractured his knee. At the same time, another unknown officer had one knee on § 87(2)(b) lower back. PO Kiladitis was on § 87(2)(b) left side with his knee on § 87(2)(b) back, but § 87(2)(b) was unsure if PO Kiladitis' knee affected his breathing. PO Kiladitis also punched and kneed § 87(2)(b) head. Another officer pepper sprayed § 87(2)(b) in his eyes, nose, and mouth, which made it difficult to breathe. The punches caused bruises and lumps all over § 87(2)(b) head and fractured his eye socket. At one point PO Kiladitis said, "Stop moving or I'm going to keep punching you." § 87(2)(b) replied that he was not resisting. § 87(2)(b) did not recall what, if anything, other officers said.

While officers held § 87(2)(b) arms still, they tased him approximately 12 or 13 times, but he was unable to describe which officers did so (BR 39). § 87(2)(b) felt about 10 or 11 taser shots on the left side of his body between his ribs and buttocks, and two or three on his right ribs. § 87(2)(b) also felt knees on his lower back and on his legs but could not recall when in the interaction that happened.

Toward the end of the struggle, § 87(2)(b) heard police sirens and approximately 20 voices (BR 39). Once the officers handcuffed him, they yanked him up by both forearms in such a way that left the bottom portion of his arm dangling. This pull was so hard that it caused § 87(2)(b) left arm to become dislocated. The officers then placed § 87(2)(b) in a vehicle. The next thing § 87(2)(b) remembered was waking up in the hospital where he was treated for his right eye socket fracture. From the hospital, § 87(2)(b) was taken to the 102nd Precinct stationhouse, then to Central Booking, and then to Riker's Island. At the time of his interview, § 87(2)(b) did not know what he was charged with.

§ 87(2)(a) – PHL 18(6)

Each officer activated his BWC and each officer's BWC fell off at different points during the struggle. At 4:07 of Sgt. Sabella's BWC, after he discovers the firearm, PO Kiladitis approaches § 87(2)(b) and grabs the chest of his sweatshirt with his left hand (**BR 04**). It appears § 87(2)(b) backs up and uses both hands to push PO Kiladitis' grip off him. PO Kiladitis moves to his right as § 87(2)(b) turns in the opposite direction, and PO Kiladitis appears to grab toward § 87(2)(b) right shoulder from behind and they both face Sgt. Sabella at 4:09. Sgt. Sabella approaches as PO Kiladitis and § 87(2)(b) fall to the ground at 4:10. Once on the ground, PO Kiladitis is positioned over § 87(2)(b) back, but it is not clear what action either takes. Sgt. Sabella approaches and holds onto PO Kiladitis' back and then grabs § 87(2)(b) sweatshirt. Sgt. Sabella is near § 87(2)(b) head.

At 4:13, § 87(2)(b) upper body is angled up off the sidewalk and against a gate (**BR 04**). Sgt. Sabella holds § 87(2)(b) left shoulder and § 87(2)(b) yells, "Wait!" as his body moves from side to side. At 4:18, PO Kiladitis, to Sgt. Sabella's right, warns he will tase § 87(2)(b) as § 87(2)(b) appears to get at least one foot underneath himself. The officers appear to push § 87(2)(b) forward and down. Sgt. Sabella then grabs § 87(2)(b) right arm and possibly his hood. At 4:21, PO Kiladitis says, "Watch out," and a taser appears at § 87(2)(b) upper back and its wires are visible at 4:22. This appears to be PO Kiladitis' first and only use of his taser. At 4:25, Sgt. Sabella stands up and moves to the other side of the group, closer to the corner. § 87(2)(b) appears to have turned so that Sgt. Sabella is standing by his upper body and head again. At 4:27, it appears § 87(2)(b) grabs the gate to his right with his right hand while his left hand is extended toward PO Kiladitis' taser. Less than a second later, Sgt. Sabella grabs § 87(2)(b) sweatshirt and then reaches for § 87(2)(b) right hand as a voice tells § 87(2)(b) to roll over. § 87(2)(b) body moves from side to side and up and down. At 4:30, Sgt. Sabella appears to briefly take hold of § 87(2)(b) left hand, but § 87(2)(b) pulls it away.

At 4:37, Sgt. Sabella stands up and radios for assistance (**BR 04**). PO Kiladitis is bent over § 87(2)(b) and punches § 87(2)(b) head area four times, but the angle of the BWC does not clearly show where these strikes land. At 4:43, § 87(2)(b) hands are in front of him, palms down on the pavement. § 87(2)(b) grabs PO Kiladitis' right elbow at 4:54. At 4:59, an officer tells § 87(2)(b) "Roll over." Around 5:05, § 87(2)(b) appears to have turned over onto his back and he grips PO Kiladitis' right elbow with his right hand. At 5:07, Sgt. Sabella grabs § 87(2)(b) left hand and at 5:10, PO Pineda appears to tase § 87(2)(b) thigh area in drive-stun mode, which is the first clear view of PO Pineda using his taser. § 87(2)(b) lets go of PO Kiladitis and reaches between his legs down towards PO Pineda's taser. At about 5:12, PO Kiladitis' back blocks the view of § 87(2)(b) and it is unclear what, if any force, is used against § 87(2)(b). At 5:30, as PO Kiladitis is kneeling over § 87(2)(b) and police sirens are audible, Sgt. Sabella's BWC falls off. When the BWC detaches from Sgt. Sabella's uniform, the timeclock in the corner of the BWC displays 21:54:33.

From about 4:25 until 7:10 of Sgt. Sabella's BWC during the struggle to take § 87(2)(b) into custody, § 87(2)(b) says he cannot breathe approximately 20 times (**BR 04**).

PO Pineda's BWC is generally consistent with Sgt. Sabella's BWC but shows a different angle of PO Kiladitis and § 87(2)(b) falling to the ground at 4:09 and § 87(2)(b) attempt to get back up at 4:14 (**BR 03**). PO Pineda's BWC falls off at 4:19, and the action is not visible on camera but at 4:30, § 87(2)(b) asks § 87(2)(b) for help over the phone. When she asks where he is, he answers, "I'm by your house!" The BWC gets knocked face up at 4:42 to show an angle from § 87(2)(b) foot area. At 4:58, while PO Kiladitis appears to be on top of § 87(2)(b) PO Kiladitis says he will punch § 87(2)(b) in the face. At 5:19, PO Pineda can be seen using a taser in drive-stun mode against § 87(2)(b) left side, but a hand, potentially § 87(2)(b) pushes the taser away multiple times so it does not make continuous contact. At 5:37, additional officers arrive to assist while a taser is audible but PO Pineda's body blocks much of the following actions. The taser is audible

again at 5:43, 6:11 and 6:21. PO Pineda leans on § 87(2)(b) right leg at 6:48 and the officers handcuff § 87(2)(b). It is unclear whether PO Pineda uses his taser in probe mode during this incident.

The first officers to arrive as back-up were PO Okeefe, PO Nilsson, Sergeant Connor Lichte, and Police Officer Bartolomeo Dangelo, all from the 102nd Precinct, and they all activated their BWCs. Sgt. Lichte's BWC shows his arrival at 1:03, or 21:54:38 according to the timeclock in the corner of the BWC, about five seconds after Sgt. Sabella's BWC falls off and depicts the interaction from the opposite angle of PO Pineda's (**BR 27**). He crouches down to Sgt. Sabella's right near § 87(2)(b) head as the officers continue to struggle with § 87(2)(b). The image is dark, and it is not always clear what is happening, but § 87(2)(b) is on the ground on his side, and he grips the fence next to him. At 1:06, a taser is heard while Sgt. Sabella and Sgt. Lichte have their hands on § 87(2)(b) left shoulder. At 1:16 an officer tells § 87(2)(b) to put his hands behind his back and at 1:20 a voice says he will pepper spray § 87(2)(b). At 1:25, PO Sabella tells the newly arrived officers to safeguard § 87(2)(b) car. The BWC gets very close to § 87(2)(b) and movements are not clear, but § 87(2)(b) appears on his stomach, with his arms generally underneath his body at 1:30. § 87(2)(b) arms remain underneath him at 1:40 as another taser sound is audible. At 1:51, while Sgt. Lichte attempts to move § 87(2)(b) right arm behind his back, another taser sound is audible. The officers have § 87(2)(b) hands behind his back briefly, but at 2:01, § 87(2)(b) moves his right arm away from the officers again. Sgt. Lichte takes hold of this arm again and Sgt. Sabella tells officers he needs a second pair of handcuffs at 2:13. While Sgt. Lichte holds § 87(2)(b) arm in place, Sgt. Sabella locks two handcuffs together at 2:33.

PO Nilsson's BWC shows the best angle of how he and PO Okeefe stand § 87(2)(b) up (**BR 12**). After officers place § 87(2)(b) in handcuffs, PO Okeefe and PO Nilsson take hold of § 87(2)(b) under his arms near his shoulders and lift him from a sitting position to a standing position from 2:16 to 2:17. § 87(2)(b) does not complain or shout in pain, but does say he had shoulder surgery later at 2:24.

PO Kiladitis' BWC does not capture any additional relevant portions of the force as it is mostly dark due to being pressed against § 87(2)(b) and falling off about ten seconds after PO Kiladitis first grabs him (**BR 02**).

There is no video footage of Sgt. Sabella or PO Pineda punching § 87(2)(b). There is no footage of any officer placing § 87(2)(b) in a chokehold or leaning on § 87(2)(b) upper body so that his breathing would be restricted. There is no footage of an officer pulling or twisting § 87(2)(b) leg. There is no footage of when PO Kiladitis pepper sprayed § 87(2)(b).

Throughout the BWC footage of the force § 87(2)(b) says he has bad shoulders and calls out to § 87(2)(b) for help.

PO Okeefe's and PO Dangelo's BWCs are generally consistent with the BWCs described above (**BR 14 & 25**).

Additional officers arrive for the aftermath of the incident and activated their BWCs (**BR 06-11, 13, 15-24, 26 & 28-37**). No additional force is used.

In the BWC videos described above, officers are heard using discourtesies which will be discussed in **Allegations E, L, and V** below.

The TRI documentation resulting from this incident states, “Defendant actively resisted by tightening arms, flaring arms, kicking, and grabbing officers by the waistband,” and was “disregarding orders in close proximity to the firearm” (**BR 47**). It goes on to say § 87(2)(b) was “forcibly moved” to the ground, PO Kiladitis, PO Pineda, and Sgt. Sabella used hand strikes, and PO Kiladitis used pepper spray on § 87(2)(b). It also states PO Kiladitis and PO Pineda used their tasers, specifying that PO Pineda used his in drive-stun mode.

Supporting TRI documentation memorialized the officers’ and § 87(2)(b) injuries. Sgt. Sabella’s face was red and swollen from the pepper spray and sustained bruising on his left knee and left hand (**BR 48**). PO Pineda suffered bruising and pain in his head and injured both knees (**BR 49**). PO Kiladitis suffered an injury to his head and hands, as well as redness and pain to his face from the pepper spray (**BR 50**). § 87(2)(b) injuries were not as clearly described, but officers took photographs of the top of his head, which does not have an obvious injury; of his eyes, labeled as where officer sprayed pepper spray; and of his torso, labeled as where the taser made contact (**BR 51**).

The Medical Treatment of Prisoner form is consistent with the TRI when describing the force used on § 87(2)(b) and adds that § 87(2)(b) suffered a fractured right orbital bone, § 87(2)(b)

§ 87(2)(b) arrest photo shows him with his eyes closed and his left eye appears swollen, as well as marks on his scalp and near his left eyebrow (**BR 53**).

The taser sheet for PO Kiladitis shows he triggered it once for five seconds at 9:55:50 PM (**BR 54**). The taser sheet for PO Pineda shows he triggered it for six 5-second cycles, one 4-second cycle, and one 3-second cycle between 9:55:54:13 PM and 9:55:26 PM (**BR 55**). In total, PO Pineda’s taser cycled for about 37 seconds.

PO Kiladitis said once he saw the firearm, he attempted to place § 87(2)(b) under arrest (**BR 40**). In PO Kiladitis’ experience, there have been times when officers discover a gun in a car only to find a second weapon on the civilian’s person, which caused PO Kiladitis to be concerned that § 87(2)(b) may have had additional weapons. PO Kiladitis grabbed § 87(2)(b) sweater, but § 87(2)(b) tried to flee on foot and due to his notable strength, PO Kiladitis’ grip did not slow him. While PO Kiladitis held onto § 87(2)(b) § 87(2)(b) moved about two car-lengths away to a nearby fence which he grabbed onto, § 87(2)(b) and the officers fell to the ground near the fence, but PO Kiladitis was unsure exactly how. He thought it may have been a result of § 87(2)(b) momentum as he ran away.

§ 87(2)(b) got up, tried to return to his vehicle, and flailed his hands away from the officers who were trying to handcuff him (**BR 40**). To gain control of § 87(2)(b) and the situation, PO Kiladitis warned that he would tase § 87(2)(b). As § 87(2)(b) continued to flail his arms away from officers, PO Kiladitis used his taser in probe-mode, but since § 87(2)(b) continued to resist, he determined the taser was ineffective, possibly due to § 87(2)(b) thick clothing that prevented the prongs from piercing his skin and completing the circuit. PO Kiladitis explained that he used his taser at that point because of § 87(2)(b) active resistance. After PO Kiladitis used his taser, an officer tased PO Kiladitis’ leg, but he did not know who.

PO Kiladitis was unclear how they all returned to the ground, but § 87(2)(b) continued to wrestle against PO Kiladitis and the other officers, “yanking” them around and pulling at the fence (**BR 40**). PO Kiladitis believed this was an attempt to return to his vehicle but did not testify to additional observations to support this assumption. PO Kiladitis was in the middle area of § 87(2)(b) body, and at one point § 87(2)(b) hit PO Kiladitis’ head with what seemed like a fist. PO

Kiladitis then put his taser away because he did not have time to reload and try again, and because it had been ineffective. During this physical struggle, PO Kiladitis told § 87(2)(b) to stop fighting, stop resisting, put his hands behind his back, and roll over. He punched § 87(2)(b) head about three times. He did nothing that would restrict § 87(2)(b) breathing and did not know of actions by officers that would injure § 87(2)(b) leg. While he acknowledged he heard § 87(2)(b) saying he could not breathe and complaining about his shoulders on BWC, PO Kiladitis did not hear these complaints at the time. PO Kiladitis thought § 87(2)(b) may have said he could not breathe so officers would stop arresting him.

At one point, § 87(2)(b) grabbed for PO Kiladitis' gun and taser on his belt an unknown number of times (**BR 40**). PO Kiladitis did not see § 87(2)(b) touch his gun, but § 87(2)(b) hand was near it and PO Kiladitis felt a downward pull on his gun. § 87(2)(b) also grabbed PO Kiladitis' shirt and pulled him closer.

Additional units from the 102nd and 106th Precincts arrived at Sgt. Sabella's request (**BR 40**). PO Kiladitis then subdued § 87(2)(b) by pepper spraying § 87(2)(b) eyes, but got some in his own eyes as well. PO Kiladitis used pepper spray because the taser and punches were ineffective. At that point, the officers brought § 87(2)(b) hands behind his back and handcuffed him. Due to the pepper spray in PO Kiladitis' eyes and because § 87(2)(b) punched him in the head, PO Kiladitis had to go back to the stationhouse and be evaluated by EMS.

Sgt. Sabella's testimony was mostly consistent with PO Kiladitis' (**BR 42**). However, he did provide a few additional and, at times, contradictory details. He testified PO Kiladitis tackled § 87(2)(b) to the ground upon discovering the firearm and § 87(2)(b) did not have a chance to run given PO Kiladitis' speed. PO Pineda was behind PO Kiladitis and both officers fell onto § 87(2)(b) when they tried to grab him. Sgt. Sabella grabbed § 87(2)(b) arms to assist in handcuffing after § 87(2)(b) tried to push the officers away, but due to his size and strength, it was very difficult to control his actions. While struggling, § 87(2)(b) grabbed Sgt. Sabella's belt near his firearm and his gun's grip. Sgt. Sabella punched § 87(2)(b) right side and arm once or twice to get § 87(2)(b) away from his weapons and to gain his compliance. These were the only times Sgt. Sabella punched § 87(2)(b) and he did not use his taser or pepper spray. PO Pineda tased Sgt. Sabella's hand in drive stun mode and pepper spray got in Sgt. Sabella's eyes, which were his only injuries, but from that point, Sgt. Sabella only remembered he grabbed one of § 87(2)(b) arms and the officers handcuffed § 87(2)(b) but he did not remember how.

PO Pineda's statement was also mostly consistent with PO Kiladitis' testimony, but also had some additional and contradictory details (**BR 41**). PO Pineda said when PO Kiladitis initially went to place him in custody, § 87(2)(b) turned away, which indicated he was fleeing, but PO Kiladitis brought § 87(2)(b) to the ground. PO Pineda said § 87(2)(b) lifted all three officers when he rose to an almost standing position. PO Pineda did not punch or kick § 87(2)(b) but he tased § 87(2)(b). Initially, PO Pineda stated he used probe-mode, which appeared ineffective, possibly because only one probe pierced § 87(2)(b) skin. PO Pineda aimed at § 87(2)(b) thigh since it is a large muscle group. PO Pineda then used the taser in drive stun to complete the circuit. PO Pineda initially estimated he attempted to complete the circuit about three times. However, PO Pineda was unsure, and, in the chaos, he acknowledged he may have just held the trigger down because of § 87(2)(b) active resistance. Holding the trigger down caused the taser to keep cycling, but while using the taser, PO Pineda knew the taser was not in continual contact with § 87(2)(b) due to the different sounds the taser made. PO Pineda testified that the different high- and low-pitched noises coming from the taser indicate if the circuit was completed via contact. The higher pitched sound means there is no contact, while a lower pitched sound means there was contact, and PO Pineda went through the relevant BWC and counted two times when he could tell the taser sounded as if it made

contact and three times it did not. PO Pineda did not know if the other officers used their tasers and used the term “tunnel vision,” when talking about his perception of the incident. PO Pineda was unaware of any time limits regarding the use of a taser (BR 56). Pepper spray got into PO Pineda’s eyes and mouth also (BR 41).

Patrol Guide Procedure 221-01, which gives instructions on the use of force, tells officers that their primary duty is to protect human life, including the lives of individuals being placed in police custody (BR 57). It goes on to say force may be used only when it is reasonable to ensure the safety of an officer or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Officers must attempt de-escalation techniques whenever possible. In order to determine if such force is reasonable, officers are to assess the situation based on, but are not limited to, the nature and severity of crime/circumstances; actions taken by the subject; the duration of that action; the immediacy of perceived threat or harm to the subject, members of the service, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; the number of subjects in comparison to number of officers; the size, age, and condition of the subject in comparison to officers; the subject’s violent history, if known; the presence of a hostile crowd or agitators, and/or; the subject being apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

It is undisputed that PO Kiladitis found a firearm in § 87(2)(b) vehicle, and, based on BWC and officer testimony, he was actively resisting officers’ attempts to place him in handcuffs by initially moving away from the officers when they tried to restrain him, keeping his hands away from officers, pushing them away, and attempting to get up multiple times.

Based on BWC and officer testimony, as PO Kiladitis placed § 87(2)(b) under arrest for having the firearm, § 87(2)(b) tried to get away by moving backwards and swiping at PO Kiladitis’ hand.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Within NYPD Guidelines**.

While BWC shows § 87(2)(b) complaining of having difficulty breathing, no footage shows any actions by officers that would restrict his breathing, although BWC footage is at times unclear. § 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **Unable to Determine**.

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **Officer Unidentified**.

The TRI indicated all three officers punched § 87(2)(b) but Sgt. Sabella’s and PO Pineda’s punches are not captured on BWC. § 87(2)(g)

It is therefore recommended that **Allegations J and K** be closed as **Unable to Determine**.

Patrol Guide 221-08 gives instruction on the use of Conducted Electrical Weapons, more commonly known as tasers (**BR 58**). It states a taser “should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present.” “Active Resistance” is defined as physically evasive movements intended to defeat an officer’s attempt at controlling a civilian, including acts like bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into custody. “Members should use a CEW for one standard cycle (five seconds) while constantly assessing the situation to determine subsequent cycles are necessary.” This procedure warns that exposure to a taser for longer than 15 seconds, whether due to multiple applications or continuous cycling, may increase the risk of death or serious injury. All applications must be independently justifiable, and the risks should be weighed against other force options. Officers should not intentionally discharge two tasers simultaneously on a subject. The drive stun mode may be used to supplement the effectiveness of a close probe spread (Three Point Contact), or to complete the circuit in the event of a single probe contact, or as a countermeasure to gain separation between officers and the subject so that officers can consider another force option.

Patrol Guide 221-07 provides instructions on the use of Oleoresin Capsicum (O.C.) pepper spray (**BR 59**). This procedure mirrors the Patrol Guide’s guidance on the use of tasers in that officers should only use pepper spray on people actively resisting arrest or who are actively aggressive to prevent them from physically injuring themselves, members of the service, or other persons, so officers can establish physical control over them.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] At the time PO Kiladitis used these tactics, BWC shows § 87(2)(b) was not in handcuffs yet and was pushing officers away and trying to flee. PO Kiladitis also warned § 87(2)(b) he would tase him prior to doing so § 87(2)(g) It is therefore recommended that **Allegations G, I and X** be closed as **Within NYPD Guidelines**.

It is undisputed that after PO Kiladitis punched § 87(2)(b) he later threatened to punch § 87(2)(b) again. At the time of this threat, § 87(2)(b) was actively resisting the officers’ attempts to handcuff him. § 87(2)(g)

[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation M** be closed as **Within NYPD Guidelines**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation W** be closed as **Within NYPD Guidelines**.

Although PO Pineda testified that he initially deployed his taser in probe mode, this is unclear in BWC and the TRI report disputes this. § 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegation N** be closed as **Within NYPD Guidelines**.

PO Pineda's taser sheet shows he cycled through his taser an additional seven times, but it is unclear how many times it connected with § 87(2)(b) and for how long given the chaotic nature of the incident. It remains unclear how effective, if at all, each cycle was since the BWC footage does not clearly show each use that did connect. § 87(2)(g)

It is therefore recommended that **Allegations O to U** be closed as **Substantiated**.

BWC footage shows PO Okeefe and PO Nilsson brought § 87(2)(b) to his feet in a controlled manner. § 87(2)(g)

It is therefore recommended that **Allegations Y and Z** be closed as **Unfounded**.

Allegation (E) Discourtesy: Police Officer William Kiladitis spoke discourteously to § 87(2)(b)

Allegation (L) Discourtesy: Police Officer Giancarlo Pineda spoke discourteously to § 87(2)(b)

Allegation (V) Discourtesy: An officer spoke discourteously to § 87(2)(b)

During the struggle with § 87(2)(b) PO Pineda's BWC captured officers making statements like "I'm going to fucking tase you," "Get the fuck down," "Don't fucking move," "Stop fucking fighting," "I'm going to fucking punch you in the face again," "I'll fucking fuck you up!" "Motherfucker," "Give me your fucking hands," "Fuck," "Calm the fuck down," and "You dumb shit," between 4:15 and 6:40 (BR 03). These profanities all occur while officers struggle to put § 87(2)(b) in handcuffs. No officers use such language after § 87(2)(b) is in handcuffs. At 1:20 of Sgt. Lichte's BWC, an officer says, "I'm going to fucking pepper spray you, motherfucker" (BR 27).

PO Kiladitis acknowledged using profanity during the struggle with § 87(2)(b) (BR 40). He finds it helps people to comply with officers' instructions, so an officer does not have to resort to force. PO Kiladitis acknowledged he said he would "fucking" tase § 87(2)(b) and told him to, "Stop fucking fighting," and he would "fucking punch" him in the face. PO Kiladitis did not use profanity to be rude but because the situation was frightening and "very stressful." PO Kiladitis also acknowledged he said "Ah, fuck!" when he got tased in his leg. He was unable to identify who else used profanity.

PO Pineda acknowledged he told § 87(2)(b) to "get the fuck" on the ground, to calm "the fuck" down, and called him a "dumb shit" (BR 41). PO Pineda swore because he was in a stressful and violent situation. He called § 87(2)(b) dumb because he thought it was foolish of § 87(2)(b) to resist when he could have submitted to the arrest. He too was unable to identify which officers used what profanity.

Sgt. Sabella was unable to identify any voice who used profanity during this BWC (BR 42).

According to Patrol Guide Procedure 200-02, officers are to “maintain a higher standard of integrity than is generally expected of others” and to “value human life, respect the dignity of each individual and render our services with courtesy and civility” (**BR 60**).

In *DCT Case #79627/04*, Assistant Deputy Commissioner of Trial, Robert W. Vinal, ruled, “When a police officer uses an otherwise impolite word during a stressful street encounter where that officer is attempting to maintain control of the situation, the police officer’s verbal slip does not rise to the level of actionable misconduct” (**BR 61**).

§ 87(2)(g) This use of profanity is captured on BWC, but the speaker is not in frame § 87(2)(g). It is therefore recommended **Allegation V** be closed as **Officer Unidentified**.

BWC shows officers only used profanities during their struggle with § 87(2)(b) § 87(2)(g). § 87(2)(g) It is therefore recommended that **Allegations E and L** be closed as **Within NYPD Guidelines**.

Allegation (AA) Abuse of Authority: Police Officer Giancarlo Pineda searched § 87(2)(b) recording device.

§ 87(2)(b) stated she recorded this incident on Facetime but the audio was not captured (**BR 62**). For most of the incident, this video does not show anything, but as the physical struggle ends, PO Pineda is seen handling the phone. § 87(2)(b) thought PO Pineda was looking through § 87(2)(b) phone for about one to two minutes. § 87(2)(b) believed that PO Pineda saw her on Facetime and disconnected.

§ 87(2)(b) provided the investigation with this cell phone video (**BR 38**). Because it is a Facetime call, there is a smaller screen within the main screen. For most of the video, the screen showing § 87(2)(b) location is generally dark. From 1:48 to 2:37, PO Pineda appears to pick the phone up and hold it as he walks, but the video goes dark again. From 2:37 to 2:48, PO Pineda appears to look down at the phone before he touches the screen, which then disconnects the call.

BWC by witness Police Officer Michael Martinez of the 106th Precinct, who arrived later as backup, shows PO Pineda holding and looking at § 87(2)(b) phone between 1:20 and 1:27 (**BR 05**). PO Martinez turns away and this video does not show when PO Pineda turned the phone off.

PO Pineda explained he was safeguarding and shutting off the phone because § 87(2)(b) was under arrest and officers had to voucher his property, but PO Pineda did not generate these vouchers (**BR 56**). § 87(2)(g)

PO Pineda denied searching through § 87(2)(b) phone or intentionally interrupting the recording. His explanation that the physical struggle with § 87(2)(b) combined with being pepper sprayed,

caused him to take more time for simple tasks, § 87(2)(g)

is therefore recommended that **Allegation AA** be closed as **Unable to Determine**.

Allegation (AB) Discourtesy: Sergeant Thomas Rynne was discourteous to § 87(2)(b)

At 10:35 of PO Pineda's BWC, Sgt. Rynne is shown wearing a 103rd Precinct "Devil's Island" patch (**BR 03**). This circular patch shows the words, "Devil's Island" and a police vehicle at the top, a red devil's head in the center, a pair of handcuffs and a firearm to the left of the devil's head, a grim reaper holding a bloody scythe next to a blood-filled syringe to its right, and the words "NYPD 103 PCT- Jamaica New York" at the bottom. The patch appears to be between three to five inches in diameter.

Devil's Island was a French penal colony located off the coast of French Guiana (**BR 63 & BR 64**). The settlement was used as a maximum-security prison, notorious for harsh treatment of prisoners and high mortality rates.

Sgt. Rynne, who used to work in the 103rd Precinct, said he received this patch from an unknown retired officer as a gift while they were at a memorial for a police officer who was killed within the confines of the 103rd precinct (**BR 65**). The images represent the violent, deadly, and drug-heavy history of the 103rd Precinct. Sgt. Rynne did not know that Devil's Island was a deadly prison colony and did not know it could be seen as offensive. Sgt. Rynne acknowledged his patch is not part of the official NYPD uniform and he did not ask permission to modify his.

As stated above, per Patrol Guide Procedure 200-02, the mission of the NYPD is to enhance the quality of life in New York City by working in partnership with the community to enforce the law, preserve peace, protect the people, reduce fear, and maintain order (**BR 60**). As part of their core values, the NYPD maintains a higher standard of integrity than is generally expected of others. Additionally, it is their mission to value human life, respect the dignity of each individual and render their services with courtesy and civility.

According to Administrative Guide Procedure 305-01, members of service must not modify prescribed uniforms in any manner except as specifically authorized by higher authority (**BR 66**). Commanding Officers or unit commanders may authorize a specialized uniform only after requesting and receiving approval from the Police Commissioner's Uniform and Equipment Review Committee.

The investigation requested documentation for Sgt. Rynne's request and/or approval for his specialized or modified uniform, specifically for the Devil's Island Patch. According to Sergeant Ahmed Khan of the Legal Bureau/CCRB Liaison Unit, the Integrity Control Officer for the 103rd Precinct advised that the Devil's Island Patch is not an authorized patch and there is no documentation of any request to have this patch authorized (**BR 67**).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation AB** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 68**).
- Sergeant Robert Sabella has been a member of service for 12 years and has been the subject in three CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- Sergeant Thomas Rynne has been a member of service for 10 years and has been the subject of two cases and two allegations, none of which were substantiated. § 87(2)(g)
- Police Officer William Kiladitis has been a member of service for three years and has been the subject in four CCRB complaints and 14 allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Giancarlo Pineda has been a member of service for seven years and has been the subject in 10 CCRB complaints and 17 allegations, one of which was substantiated.
 - 201708379 involved a substantiated allegation of an entry of premises. The Board did not make a recommendation and the NYPD imposed no penalty. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- As of October 30, 2023, § 87(2)(b) filed a Notice of Claim with the City of New York claiming personal, physical, and emotional injuries and seeking \$5,000,000.00 as redress (**BR 69**). There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 16

Investigator:	<u>Nick Venduras</u>	<u>Inv. Nicholas Venduras</u>	<u>April 24, 2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>04/24/2024</u>
	Signature	Print Title & Name	Date

Reviewer:

Signature

Print Title & Name

Date